

constitute a defense to the Complaint.

2. Defendant became indebted in the amount of \$2,570.85 on the subject credit card account (the “Debt”).
3. Plaintiff is entitled to judgment as a matter of law against Defendant on the Complaint.

Costs

As part of the moving papers, a Memorandum of Costs was filed September 19, 2025. The Memorandum of Costs reflects recoverable costs in the sum of \$358.61.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of judgment was lodged with the Court which the Court shall execute and enter.

10. 9:00 AM CASE NUMBER: L25-02849
CASE NAME: JASMANE HAYES VS. WILLOW GLEN APARTMENTS
***HEARING ON MOTION IN RE: MOTION TO QUASH FILED BY DEF RELIANT PROPERTY**
MANAGEMENT, INC ON 09/18/2025
FILED BY: RELIANT PROPERTY MANAGEMENT
TENTATIVE RULING:

Reliant Property Management, Inc., erroneously named herein as “RELIANT PROPERTY MANAGEMENT” (“Reliant”) filed a Motion to Quash Service of Process on September 18, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on December 2, 2025. The motion is opposed.

Background

Plaintiff Jasmane Hayes (“Plaintiff”) filed this action on March 12, 2025, alleging multiple causes of action stemming from allegations that the named defendants induced her to vacate her apartment at the “Willow Glen Apartments” in Hercules, California, by agreeing to waive certain rents and then renegeing on the agreement after Plaintiff vacated. See Complaint for Damages filed March 12, 2025 (the “Complaint”), ¶1 *et seq.*

The named defendants include:

1. “WILLOW GLEN APARTMENTS”
2. “RELIANT PROPERTY MANAGEMENT”
3. “DOES 1-100”

See Complaint, p. 1 (caption).

“WILLOW GLEN APARTMENTS” is described in the Complaint as a “a residential apartment complex located at...” See Complaint, ¶12. It is not alleged to be a person or entity. *Id.*

There is an apparent screenshot in the body of the Complaint as to the nature of “RELIANT PROPERTY MANAGEMENT.”



Id.

A purported proof of service was filed August 15, 2025 by Plaintiff as to defendant “WILLOW GLEN APARTMENTS.” See Proof of Service of Summons filed August 15, 2025 (the “Willow Glen POSS”). The person served on behalf of this named defendant is stated as “Trevor Mirkes, Agent” by substitute service on “Ashley Ortiz” at “1231 willow ave, Hercules, CA 94547” on June 3, 2025, as the “Property Manager, Person apparently in charge.” *Id.* at ¶¶3-5. Service was done by a registered process server. *Id.* at ¶7.

Reliant’s Motion to Quash contends that service of process is defective because “WILLOW GLEN APARTMENTS” is “an apartment complex; it is not an entity capable of being sued nor served with process” and that the efforts to serve Reliant have been defective for various reasons. See Reliant’s Memorandum of Points and Authorities filed on September 18, 2025 (“Reliant’s MPA”).

Reliant asserts that no person or entity authorized to be served on Reliant’s behalf was served with a Summons and related papers in proper form. See Declaration of Zachary Z. Hardister, (“Supporting Declaration”), ¶1 *et seq.*

Analysis

Code of Civil Procedure section 418.10 sets forth a number of different procedural actions that a defendant may take on or before the last day of his or her time to plead (or as otherwise allowed by the court). See Code Civ. Proc. § 418.10(a). Notably, it is the named defendant (or cross-defendant) that has these procedural remedies, not another party. *Id.*

Accordingly, Reliant does not have standing to raise deficiency of service on behalf of “WILLOW GLEN APARTMENTS.” Indeed, Reliant’s motion is quite clear that it contends that “WILLOW GLEN APARTMENTS” is not a legal entity. If true, as it appears to be, then this is simply a defect in the nature of Plaintiff’s stated claims that the Court can consider if and when it considers whether Plaintiff has proved up a claim as against “WILLOW GLEN APARTMENTS.”

As to Reliant itself, no proof of service has been filed to date purporting to reflect service of process on Reliant. The first service attempt described in Reliant’s papers was service purported to be made upon Reliant at the subject apartment complex. Supporting Declaration, ¶4 and **Exhibit B**. The details of such service are unclear. A second service attempt is described as service on August 18, 2025 on “Gladis Flores,” an employee of

“Cornerstone Residential Management,” apparently at another property location in Pittsburg, California. Supporting Declaration, ¶5 and **Exhibit B**.

An Opposition paper was filed on behalf of Plaintiff.* See Opposition filed on October 3, 2025 (“Plaintiff’s Opposition”). Although Plaintiff’s Opposition makes lengthy arguments, importantly, it fails to identify any filed proof of service of process on Reliant. While Plaintiff asserts confusion over the correct entity to sue, that is not the issue. Whatever entity or entities Plaintiff chooses to sue, Plaintiff must effect service of process on a person or entity authorized to be served for such entity or entities under the Code of Civil Procedure. The Court has considered and rejects the contentions that Reliant has somehow made a general appearance.

As it stands, and as noted above, no proof of service has been filed as to Reliant. There has been no showing of proper service of process on Reliant. Plaintiff is, of course, free to continue efforts to complete proper service on Reliant and to then file a Proof of Service of Summons as to Reliant.

Whether the omission of “, Inc.” from the Reliant’s name in the operative Complaint and Summons—“RELIANT PROPERTY MANAGEMENT” versus “Reliant Property Management, Inc.”—would render service defective in and of itself is another question which the Court need not address since there has been a failure to show proper service otherwise on Reliant. However, such a minor defect is unlikely to void otherwise proper service. See *Billings v. Edwards* (1979) 91 Cal.App.3d 826, 831 (“The complaint sometimes designates a defendant by a name *misspelled* or otherwise *erroneous* (see Pleading, § 363), and this mistake may be carried into the summons. However, if the service is otherwise properly made, and the person served is aware that he is the person named as a defendant in the erroneous manner, jurisdiction is obtained...”).

*The Court notes that Plaintiff’s Opposition was filed by Plaintiff’s attorney of record Reshma Kamath. The Court notes that the State Bar Court of California entered an Order dated October 20, 2025, enrolling Plaintiff’s attorney as an inactive attorney of the State Bar of California pending further disbarment proceedings (the “State Bar Court Order”). The Court takes judicial notice of the State Bar Court Order. The Court considers the written Opposition filed before the foregoing State Bar Court Order. However, Plaintiff’s attorney will not be permitted to appear and argue on the motion. Plaintiff is given notice that other arraignments must be made for representation or Plaintiff may appear in pro per to be heard if Plaintiff chooses to do so.

Disposition

The Court further finds and orders as follows:

1. The Motion to Quash is GRANTED IN PART and DENIED IN PART.
2. The Motion to Quash is GRANTED as to Reliant and all prior service attempts on Reliant are hereby QUASHED.
3. The Motion to Quash is DENIED as to “WILLOW GLEN APARTMENTS.”